Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 5 2010

as amended

made under section 17(5A) of the *Fisheries Management Act 1991*

and

section 56(1) of the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003*

This compilation was prepared on 4 November 2011
taking into account amendments up to *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction Variation No. 1 2011*

Prepared by the Australian Fisheries Management Authority

1. Citation

This Direction may be cited as SESSF (Closures) Direction No. 5 2010.

2. Commencement

This Direction commences on the day after it is registered on the Federal Register of Legislative Instruments.

3. Application

This Direction applies to all Commonwealth Trawl Sector Boat Statutory Fishing Right holders in the Southern and Eastern Scalefish and Shark Fishery and to a person acting on behalf of those holders.

4. Period of Application

This Direction applies for a period of 18 months from the commencement date or until revoked, whichever is the earlier.

5. Definitions

An expression used in this direction has the same meaning as in the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003.*

All geographic coordinates contained within the schedules attached to this document are in terms of the **Geocentric Datum of Australia 1994 (GDA94)**.

Unless otherwise stated, the lines between coordinates are geodesics.

6. Direction not to engage in fishing

Fishing for Snapper (Pagrus auratus) using trawl method is not to be engaged in in Victorian waters except for circumstances set out below.

(1) Subject to clause 2, on a trip, a Trawl Boat SFR holder (the holder) may take up to 50 kg of Snapper from Victorian waters.

(2) For the purposes only of undertaking an assessment of Snapper catch and discard levels for AFMA, the holder may take on a trip in excess of 50 kg of Snapper provided:

b. Fishing only take place prior to the assessment being terminated on:

i. 30th April 2012; or

ii. the taking of an aggregated amount of 20 tons of Snapper under the assessment prior to 30th April 2011; or

iii. the taking of an aggregated amount of 27 tons of Snapper under the assessment after 1st May 2011 and prior to 30th April 2012;

with AFMA to notify holders in writing of such terminating event.

Federal Register of Legislative Instruments F2011C00878

b. All fishing on a trip including embarkation and landing takes place only in an area bounded by a notional line beginning at the intersection of the coastline at mean low water mark with the border between New South Wales and Victoria and running progressively

    i. south easterly along the geodesic towards a point of latitude 37 degrees 35 minutes south, longitude 150 degrees 10 minutes east to its intersection with a line parallel to, and 3 nautical miles distant from, the coastline at mean low water mark; then

    ii. along that line to its intersection with the geodesic which is a continuation of the landward border between New South Wales and Victoria; then

    iii. south easterly along the geodesic to its intersection with the outer limit of the AFZ; then

    iv. generally southerly along that outer limit to its intersection with the parallel of latitude 39 degrees 12 minutes south; then

    v. westerly along the parallel to its intersection with meridian longitude 146 degrees 24 minutes east; then

    vi. northerly along that meridian to its intersection with the coastline of Victoria at Wilson's Promontory; then

    vii. generally north easterly along the coastline of Victoria at mean low water mark to the point where the line began;

c. The holder does not target Snapper;

d. The holder records all Snapper taken on a shot by shot basis;

e. The holder lands any Snapper at Lakes Entrance Fishermen's Cooperative Limited for the recording, aggregating and assessment of Snapper catch taken and

f. The holder does not take excess Snapper catch for the purpose of this assessment unless the vessel monitoring system is operational and the holder has carried an observer when requested.

(3) For the purpose of this Direction, "Victorian waters" and "trip" have the same meanings as defined in s47 of the *Fisheries Management Regulations 1992*.

Federal Register of Legislative Instruments F2011C00878

Notes to the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 5 2010*

Note 1

The *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 5 2010* (in force under section 17(5A) of the *Fisheries Management Act 1991* and section 56(1) of the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003*) as shown in this compilation is amended as indicated in the Tables below.

Table of Instruments

Title	Date of FRLI registration	Date of commencement	Application, saving or transitional provisions
Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 5 2010	14 Dec 2010 (*see* F2010L03166)	15 Dec 2010	
Southern and Eastern Scalefish and Shark Fishery (Closures) Direction Variation No. 1 2011	25 Oct 2011 (*see* F2011L02125)	26 Oct 2011	—

Table of Amendments

ad. = added or inserted am. = amended rep. = repealed rs. = repealed and substituted

Provision affected	How affected
S. 6.....	am. F2011L02125